

21STCV32772 21STCV32772

County: los-angeles

Division: Civil Law and Motion

Department: 311

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Case Number: 21STCV32772 Hearing Date: August 27, 2026 Dept: 311

SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

21STCV32772

PEDRO

CRUZ vs MARQUEZ SUPPLIES AND INSTALLATION, INC., A CALIFORNIA CORPORATION, et al.

August

27, 2026

8:30

AM

NATURE OF PROCEEDINGS:

DEFENDANTS' MOTION FOR RELIEF FROM DEFAULT AND DEFAULT JUDGMENT.

RULING:

The Court grants the Motion.

The Court vacates and sets aside defaults of Defendants MARQUEZ SUPPLIES AND INSTALLATION, INC. dba MARQUEZ WOOD FLOORS, and RAMON MARQUEZ aka ROMAN MARQUEZ, entered on April 6, 2026.

Within 10 days, Defendants may serve and file the proposed Answer as a separate document instead of a Motion exhibit.

Defendant to give notice.

I.

BACKGROUND

On September 3, 2021, Plaintiff filed the Complaint for wage-and-hour violations, having the following causes of action: 1) Wrongful Termination in Violation of Public Policy; 2) Retaliation; 3) Retaliation for Disclosing Violations of Law; 4) Failure to Pay Wages; 5) Failure to Pay Minimum Wages; 6) Failure to Pay Overtime Compensation; 7) Failure to Provide Meal and Rest Periods; 8) Failure to Provide Itemized Wage Statements; 9) Failure to Indemnify; 10) Waiting Time Penalties; and 11) Unfair Competition.

On December 1, 2022, Plaintiff filed a Second Amended Complaint (SAC). The amendments were for updating Plaintiff's Counsel's address and stating a properly numbered title.

On January 10, 2025, Plaintiff filed the Motion for leave to file a Third Amended Complaint (TAC), to correct and specify the general damages portion in the prayer, so that Plaintiff can proceed properly with a default.

On July 3, 2025, Plaintiff filed the TAC.

On March 5, 2026, Plaintiff filed the Motion seeking allowance of default entries, notwithstanding Clerk rejections for lack of Statements of Damages.

Via the April 6, 2026

Minute Order, the Court entered Defendants' defaults.

Proposed Default

Judgments were received on August 14, 2026, but never filed.

On August 10, 2026,

Defendants filed the Motion for Relief from Default and Default Judgment.

Plaintiff opposes,

arguing insufficient notice and unsupportive reliance upon an attorneys' advice.

II.

LEGAL STANDARD

As to motions made under

Code of Civil Procedure section 473, moving parties have the initial burden to prove excusable neglect by a preponderance of competent evidence. (Kendall v. Barker (1988) 197 Cal.App.3d 619, 624.) "In order to qualify for [discretionary] relief under section 473, the moving party ... must submit affidavits or testimony demonstrating a reasonable cause for the default." (Huh v. Wang (2007) 158 Cal.App.4th 1406, 1419.)

III.

ANALYSIS

Defendants move for

relief from Entries of Default and any Default Judgments, essentially on the following bases:

1.

Inability to afford legal representation.

2.

Legal advice from one attorney about nothing concerning..

3.

Reliance on advice of family members.

4.

Mistaken belief the case would not proceed, given the merits about Plaintiff never employed.

5.

Inability to speak or read English fluently.

6.

Lack of legal knowledge.

Plaintiff opposes, arguing that (1) Defendants gave insufficient' days' notice of the Motion, (2) Defendant RAMON MARQUEZ admitted he got notice of Plaintiff's lawsuit, and (3) Defendant's reliance on attorney legal malpractice does not constitute excusable neglect.

Mistakes of law are deemed excusable depending upon "the reasonableness of the misconception and the justifiability of lack of determination of the correct law." (Hanooka v. Pivko (1994) 22 Cal.App.4th 1553, 1563.)

As to defaults entered after defendants relied on others to help with the defense, relief is available where defendants were reasonably justified in their reliance under the circumstances. (Fasuyi v. Permatex, Inc. (2008) 167 Cal.App.4th 681, 697.)

A Court determined there was discretion to find excusable neglect where a party evidenced temporary lack of funds to retain counsel, and being occupied with business. (Lee v. Wells Fargo Bank (2001) 88 Cal.App.4th 1187, 1201.) A failure to seek attorney representation may be excusable neglect, depending on the circumstances. (See Barragan v. County of L.A. (2010) 184 Cal.App.4th 1373, 1382-1383; People ex rel. Dept. of Transportation v. Superior Court (2003) 105 Cal.App.4th 39, 43-44[.])

A Court had discretion to grant a party relief under Code of Civil Procedure section 473, based on

arguments including that “she did not understand nor speak English....” (See Watson v. Watson (1958) 161 Cal.App.2d 35, 38.)

Here, the Declaration of Defendant RAMON MARQUEZ, filed August 10, 2026, supports relief based upon (1) lacking finances to afford an attorney long-term, (2) relying upon one-time attorney advice involving mistakes of law, (3) inability to speak or read English fluently, and (4) working hard running a business.

Because there are one or more cognizable bases for relief, the Court need not address the law that attorney negligence is insufficient to support discretionary relief under Code of Civil Procedure section 473. (E.g., Pazderka v. Caballeros Dimas Alang, Inc. (1998) 62 Cal.App.4th 658, 672.)

Finally, Defendant effectively waived the notice objections by addressing the merits. (E.g., In re Marriage of Falcone and Fyke (2008) 164 Cal.App.4th 814, 826.)

IV.

CONCLUSION

The Court grants the Motion and vacates the defaults.